

corded. Lastly, that those justices shall presently give judgement according to the said record.

A commission granted in 18 E. 3. grounded upon this statute, and referring to the same being enacted, as there it appeareth, at a parliament holden *die Mercurii proxim' post medium quadragesimæ anno 14 E. 3. regni Angliæ et Franciæ primo*, there being two parliaments in that year, which you may reade, being worthy of observation, for it is a good exposition of this act.

4. It is further provided by the said act of 14 E. 3. that in case it seemeth to them, that the difficulty is so great, that it cannot well be determined without assent of parliament, that the tenor or tenors shall be brought by the said prelate, earls, and barons unto the next parliament, and there shall finall accord be taken what judgement shall be given in this case.

* It is better that the demandant be delayed, then the tenant disinherited, or that the law be altered. Shard. We cannot nor will delay any man in respect of our oath.

* The justices ought to delay no man in the name of the king where the king hath no right. The demandant shall not be legally delayed twice for one cause.

* Delay in a *quare impedit*, though it be by essoign, is a disturbance. *a Semper fur est in mora. * In circuitu impii ambulant.*

* In divers cases the party grieved shall have an action for unjust delay.

** Tolle moram, semper nocuit differre paratis*

But seeing neither the common law, nor any of the acts of parliament do extend to ecclesiasticall courts, it is then demanded, what if an inferiour ordinary will refuse, or delay to admit and institute a clerk presented by the right patron, to a church within his dioces, or the like: or delay, or refuse to give sentence in a cause depending before him. It is answered, that the archbishop of the province may grant his ^b letters under his seale to all and singular clerks of his province, to admonish the ordinary, within nine dayes to performe that which by justice is desired, or otherwise to cite him to appeare before him or his officiall at a day in those letters prefixed, and to cite the party that hath suffered such delay, then and there likewise to appeare, and further to intimate to the said ordinary, that if he neither perform that which is enjoyned, nor appear, he himselfe without further delay will performe the justice required. Or in the former of the said cases, the party delayed may have his *quare imp.* but that is thought not to be so speedy a remedy.

Rot. pat. 18 E. 3.
2 part.

Rules concerning
delays.

^a 18 E. 3. 54. a.

¹³ H. 4. 4.

²⁴ E. 3. 64. a.

^b 4 E. 3. 2. a.

²² H. 6. 39. per

Newton.

¹⁰ E. 3. 57.

⁴⁰ E. 3. 22. &c.

^c 4 E. 3. 14.

⁶ E. 3. 4.

^d Bracton.

^e Psal. 12. 9.

^f 44 E. 3. 4.

¹⁸ E. 3. 12, 13.

²⁰ H. 6. 10.

²¹ E. 4. 22, 23.

^{F. N. B.} 96. f.

^{97.} b.

^g Ovidius.

^h This is called
duplex querela,
necessary to be
known for find-
ing of institu-
tions, &c.

C A P. VII.

The Court of Kings Bench, *coram Rege.*

Lib. 3. cap. 7.
fa. 105. b.

fa. 108. a.

• Nota.

• A greater prohibition.

Libet niger in
Scaccario, cap. 4.

• Note this word
• See Britton,
f. 1. speaking
of the king, Et
pur ceo que nous
ne sçissions in
cuisse proper per-
son a s'ier & ter-
miner touts querels
del peuple. Avo-
nus partie nostre
e charge en plusieurs
partis come est or-
daine, &c.

20 E. 3. cap. 1.

• Stat de Marl.

52 H. 3. ca. 1.

Vi. 4 H. 4.

ca. 22.

• 24 H. 3. cap. 2.

in effect.

• Bract. lib. 1.

ca. 5. fol. 3. b.

• 20 E. 3. cap. 1.

speaking in the

king's person.

BRACON doth make in few words a notable expression of this court. *Habet rex plures curias in quibus diversæ actiones terminantur, et illarum curiarum habet unam propriam, sicut aulam regiam, et justiciarios capitales qui proprias causas regias terminant, et aliorum omnium, per querelam, vel per privilegium, sive libertatem.* And soon after speaking of the justices of this court saith: *Item justiciariorum quidam sunt capitales, generales, perpetui, et majores à latere regis residentes, qui omnium aliorum corrigere tenentur injurias, et errores.*

And Britton saith: *In droit des justices que sont assignes de nous s'ier et tener nostre lieu ou q. nous seons en Anglitterre. • Voilons que eux ciant comusans de amender faux judgements et de terminer appeales et auters trespasses faitz encontre nostre peace, et * enconter nostre jurisdiction, et leur record se esteant solong; ceo que nous manderons per nostre bre.*

Fleta in describing this court saith: *Habet et rex curiam suam et justiciarios suos tam milites quam clericos locum suum tenentes in Anglia, coram quibus, et non alibi nisi coram semetipso et concilio suo vel auditoribus specialibus falsa judicia et errores justiciariorum revertuntur et corriguntur: ibidem etiam terminantur brevvia de appellis, et alia brevvia super actionibus criminalibus et injuriarum contra pacem regis illatarum impetrata, et omnia, in quibus continetur ubi tunc fuerimus in Anglia.*

In the Black Book of the exchequer, it is thus said of the chief justice of this court: *capitalis justitia præsidet primus in regno.* Out of these three ancient authors we observe these six conclusions.

First, where Bracton saith, *Habet rex plures curias in quibus diversæ actiones terminantur*; hereby, and in effect by ^a Britton, and this conclusion followeth, that the king hath committed and distributed all his whole power of judicature to severall courts of justice, and therefore the judgement must be *ideo consideratum est per curiam.* And herewith do agree divers acts of parliament and book cases, some whereof, for illustration, we will briefly remember; and leave the judicious reader to the rest.

^b *Provisum, concordatum et concessum est, quod tam majores, quam minores justitiam habeant et recipiant in curia domini regis.* ^c That the lawes ecclesiasticall and temporall were and yet are administred, adjudged, and executed by fundry judges, &c. ^d *Expedit etiam magistratus reipublicæ constitui, quia per eos qui juredicendo præsumt effectus rei accipitur; parum enim jus in civitate esse, nisi sint qui possunt jura gerere.*

^e For the pleasure of God and quietnesse of our subjects as to save our conscience, and to keep our oath, by the assent of our great men and other of our counsell, we have commanded our justices, that they shall from henceforth do even law and execution of right to all our subjects, rich and poor, without having regard to any person, without letting to do right for any letters or com-

mandement

mandement which may come to them from us, or from any other, or by any other cause.

Agreeable to that great canon of the law anno 3 E. 1. which we have translated into Latin: *Rex præcipit quòd pax sacrosanctæ ecclesiæ et regni jostidè custodiatur et conservetur in omnibus, quodq; justitia singularis tam pauperibus quam divitibus administratur, nulla habita personarum ratione.* See the second part of the Institutes, W. 1. cap. 1.

W. 1. 22. 3 E. 1.
cap. 1.
Fleta lib. 1.
ca. 29.

[71]

8 H. 4. the king hath committed all his power judiciall, some in one court, and some in another, so as if any would render himselfe to the judgement of the king in such case where the king hath committed all his power judiciall to others, such a render should be to no effect. And 8 H. 6. the king doth judge by his judges (the king having distributed his power judiciall to severall courts) and the king hath wholly left matters of judicature according to his lawes to his judges.

8 H. 4. fo. 19.

8 H. 6. 20 & tit.
Grant. F. 5.

And albeit it be enacted that the delinquent shall be fined at the will of the king, *Non dominus rex in camera sua, nec aliter nisi per justiciarios suos (finem imponit) et hæc est voluntas regis, viz. per justiciarios et legem suam, unum est dicere.*

2 R. 3. fol. 12.

The second conclusion is, that in those dayes this court of kings bench did follow the court: and therefore Bracton calleth it *aulam regiam*, because they sat in the kings hall. Britton calleth the justices of this court, *justices assignes de nous suer*: and Fleta, *ubi tunc fuerimus in Anglia*.

The third is, that it is called the kings bench, and the pleas thereof *coram rege*: because in this court (as Bracton saith) those *capitales justiciarii proprias regis causas terminant*, and therefore the king himselfe cannot be judge in *propria causa*.

Of these you may read in Glanvil. lib. 1. cap. 2. Sec. & lib. 10. cap. 18. and in the third part of the Institutes per totum, & Stanf. per totum.

* And in Ireland of errors in the kings bench there. lib. 7. fo. 18. F. N. B. 22. 34 Ass. 7. 39 E. 3. Error 88. a Lib. 11. fo. 98. Jam. Baggescafe Vid. 10 E. 3. ca. 3. Mar-shallea.

The fourth is, that under these words (*proprias causas*) are included three things. First, all pleas of the crowne; as all manner of treasons, felonies, and other pleas of the crown which *ex congruo*, are aptly called *proprie cause regis*, because they are *placita coronæ regis*. Secondly, regularly to examine and correct all and all manner of errors in fact, and in law, of all the judges and justices of the * realm in their judgements, processe, and proceeding in courts of record, and not only in pleas of the crown, but in all pleas, reall, personall, and mixt, (the court of the exchequer excepted, as hereafter shall appear.) And this is *procurum quarto modo* to the king in this court: for regularly no other court hath the like jurisdiction, and therefore may be well called *propria causa regis*. and these two be of high and soveraign jurisdiction. * Thirdly, this court hath not only jurisdiction to correct errors in judiciall proceeding, but other errors and misdemeanours extrajudiciall tending to the breach of the peace, or oppression of the subjects, or raising of faction, controversy, debate, or any other manner of misgovernment; so that no wrong or injury, either publick or private, can be done, but that this shall be reformed or punished in one court or other by due course of law. As if any person be committed to prison, this court upon motion ought to grant an *habeas corpus*, and upon returne of the cause do justice and relieve the party wronged. And this may be done though the party grieved hath no priviledge in this court. It granteth prohibitions to courts temporall and ecclesiasticall, to keep them within their proper jurisdiction. Also this court may baile any person for any offence